

**HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR**

S.B. Criminal Miscellaneous (Petition) No. 2128/2019

Renu Singh W/o. Ranjit Singh, by Caste Punjabi, Resident
of Alwar, at present residing at Nagarpalika Road, Basant
Bihar Colony, Pushp Paradise, Gannor Tehsil Gannor,
District Sonipat (Haryana)

----Accused-Petitioner

Versus

1. State Of Rajasthan, Through PP.

---Non-Petitioner

2. Smt. Jaibuna W/o Shri Hasam, by Caste Mev, Resident of
Village Satwadi, Police Station Pahadi, District Bharatpur,
Rajasthan

----Complainant-Non-Petitioner

For Petitioner(s) : Mr. Gaurav Gupta

For Respondent(s) : Mr. Arvind Chawla, Public Prosecutor

HON'BLE MR. JUSTICE PRAKASH GUPTA

Judgment / Order

24/04/2019

The present petition under Section 482 Cr.P.C. has been filed for quashing the order dated 24.10.2018 whereby the trial court dismissed the application under Section 202 and 317 Cr.P.C. for dispensing the accused for personal attendance in trial.

Facts in brief are that challan has been filed against the petitioner and co-accused for the offences under Sections 420, 467, 468, 471, 120B, 193, 197, 198, 199, 477A IPC and Section 125A of the Representation of the People Act, 1951. The trial Court took cognizance of the aforesaid offences, thereafter, accused-petitioner Renu Singh filed an application under Sections

205, 317 Cr.P.C. for dispensing her personal appearance in trial. The same was dismissed by the trial court.

Hence this petition:

It is submitted by the learned counsel for the petitioner that the accused-petitioner is a female and is residing with her husband at Gannor, District Sonipat, Haryana which is very distant from the Court where trial is in process. It is also submitted that the accused-petitioner is on bail and already represented by her counsel. It is further submitted that petitioner accused undertakes to appear before the learned trial Court as and when would be called for her personal appearance. Grounds on which application was dismissed were not legally tenable. He has placed reliance on the judgment of the Apex Court in **Rameshwar Yadav & Others. Vs. State of Bihar and Another :(2018) 4 SCC 608.**

I have considered the submissions made by learned counsel for the parties and perused the material available on record.

It is not in dispute that the accused-petitioner is a female and is residing with her husband at Gannor, District Sonipat, Haryana. It is also not in dispute that the petitioner is on bail, she is duly represented by her counsel. The distance between Kaman, Bharatpur and Gannor, District Sonipat Haryana is approximately 230 kms. Hon'ble Supreme Court in **Rameshwer and Anr.** (supra) after considering the provisions contended in Sections 205 and 317 Cr.P.C. in para 14 of the judgment observed as under:-

"In the application the grounds which were given by the appellants was that, Appellant No.1 father of Arnesh Kumar is retired Army personnel and residing in Pune with his wife, that is, appellant No.2.

Appellant Nos.3 and 4 were also residing at Pune. Arnesh Kumar, the husband was working at Hyderabad. The Magistrate has not considered the grounds which were taken by the appellants for seeking exemption. It was on the record before the High Court that distance between residence of the accused and the place of trial at Patna is 1750 kms. It was further stated that appellant No.3, Ashok Kumar Yadav was a business man and running Company in Pune and appellant No.4 was a student of BCA in Pune. Taking into consideration the entire facts and circumstances and the grounds taken by the appellants in their application under [Section 205](#) Cr.P.C. as well as in the application under [Section 482](#) Cr.P.C. filed before the High Court, we are of the view that sufficient grounds were made out for granting exemption from personal appearance of the appellants in the trial. The Magistrate committed error in not advertng to the grounds taken for praying the exemption and rejected the application on the reasons which were unfounded. The Magistrate under [Section 205](#) sub-Section (2) [Cr.P.C.](#) is empowered at any stage to direct personal appearance of the accused hence as and when personal appearance of the accused is required the Magistrate is empowered to issue necessary orders if so decides. "

The facts of the present case are similar to the aforesaid judgment.

Having regard to the submissions made by the learned counsel for the parties and in the facts and circumstances of the case, the present petition deserves to be allowed and the same is accordingly allowed. The personal appearance of the accused-petitioner is exempted. This, however, shall not preclude the trial court to pass appropriate orders under [Section 205\(2\) Cr.P.C.](#) if

and when personal appearance of the accused-petitioner is required.

(PRAKASH GUPTA),J

Mohit Rohila /45

RAJASTHAN HIGH COURT



सत्यमेव जयते